

IN RE: MCELMURRY

CASE NUMBER: 26CV-0210018

Tentative Ruling on Petition for Change of Name: Petitioner Kaycee Lynn McElmurry seeks to change her name to Kaycee Lynn James. A proof of publication has been filed; however, it notices an incorrect hearing date. The publication indicates a hearing date of January 26, 2027. Petitioner is ordered to appear today to discuss the publication defect.

SIMS, ET AL. VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on March 20, 2026, to Plaintiff and Counsel for failure to serve Defendant Christopher Jordan Witcher. Hearing on the OSC was continued from June 15, 2026 to today’s date. Since the June 15, 2026, Plaintiff has had default entered as to Defendant Witcher. The OSC is VACATED. No sanctions will be imposed. No appearances are necessary on the 8:30 a.m. calendar today. The 9:00 a.m. review hearing regarding status and trial setting is confirmed.

VELOCITY INVESTMENTS LLC VS. VELA, JR

CASE NUMBER: 25CV-0208785

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on June 16, 2026, to Plaintiff and Counsel, for failure to timely seek entry of default as required by CRC 3.110(g). Plaintiff has filed a written response to the OSC. Plaintiff has also submitted a request for entry of default judgment, which is under review by a bench officer. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for a review hearing on **Tuesday, September 8, 2026 at 9:00 a.m. in Department 64** regarding status of default judgment.

WELLS FARGO BANK, NA VS. BOOTH

CASE NUMBER: 25CVG-00794

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: This matter is assigned for all purposes to Judge Benjamin L. Hanna who is assigned to Department 63. Plaintiff noticed this motion for Department 64. Due to a clerical error, the Notice of Hearing was not rejected at filing. **This motion will be heard in Department 63, which is next door. If appearing remotely, you will find the WebEx access code on the Tentative Rulings for Department 63.**

9:00 a.m. Review Hearings

B.C. VS. MOCK

CASE NUMBER: 22CV-0201088

This matter is on calendar for review regarding status of criminal proceedings and trial re-setting. An appearance is necessary on today's calendar.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

This matter is on calendar for review regarding status of the litigation. This matter is on calendar at 8:30 a.m. today for hearing on the Petition for Approval of Compromise of Claim For Minor. Appearances are required at 8:30 a.m. today. The 9:00 a.m. review hearing will be advanced to 8:30 a.m. as well. No separate appearances is necessary on the 9:00 a.m. review calendar.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

This matter is on calendar for review regarding prove-up setting. Today's review hearing was continued pursuant to the Court's July 13, 2026 Order, to **Monday, September 14, 2026 at 9:00 a.m. in Department 64.** That date is confirmed. No appearances are necessary on today's calendar.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

CASE NUMBER: 23CV-0201803

This matter is on calendar for resetting the trial date. The previous trial date of June 30, 2026 was vacated on the court's own motion due to unavailability. The parties are ordered to appear with available trial dates.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

This matter is on calendar for review regarding status of settlement funds and dismissal. Plaintiff's counsel has filed a status report requesting a 45-day continuance for final payment by Defendant pursuant to the terms of the settlement agreement. Plaintiff anticipates a request for dismissal will be filed prior to the future hearing date. Today's hearing is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for review regarding status of settlement funds and dismissal. No appearances are necessary on today's calendar.

JOHN DINNING VS. STREETER

CASE NUMBER: 24CV-0205655

This matter is on calendar for review regarding status of judgment/dismissal. The Court received and executed a proposed order on April 9, 2026. However, no judgement or request for dismissal has been submitted. Either a judgment or dismissal must be submitted in order to close the case. The Court noted this defect in its June 22, 2026 status hearing ruling, but nothing further has been filed. Appearances are necessary on today's calendar to provide a status of judgment/dismissal.